

Senate Amendment to  
House File 303

H-1244

1 Amend House File 303, as passed by the House, as follows:

2 1. By striking everything after the enacting clause and  
3 inserting:

4 <Section 1. Section 514F.8, Code 2025, is amended by adding  
5 the following new subsections:

6 NEW SUBSECTION. 1A. a. A utilization review organization  
7 shall provide a determination to a request for prior  
8 authorization from a health care provider as follows:

9 (1) Within forty-eight hours after receipt for urgent  
10 requests.

11 (2) Within ten calendar days after receipt for nonurgent  
12 requests.

13 (3) Within fifteen calendar days after receipt for  
14 nonurgent requests if there are complex or unique circumstances  
15 or the utilization review organization is experiencing an  
16 unusually high volume of prior authorization requests.

17 b. Within twenty-four hours after receipt of a prior  
18 authorization request, the utilization review organization  
19 shall notify the health care provider of, or make available to  
20 the health care provider, a receipt for the request for prior  
21 authorization.

22 c. A utilization review organization shall conduct an annual  
23 review and submit the findings in a report to the commissioner  
24 pursuant to the reporting procedures and deadlines established  
25 by the commissioner. The commissioner shall publish, within  
26 sixty calendar days of receipt, the report on a publicly  
27 accessible internet site. The annual report shall include all  
28 of the following:

29 (1) The total number of, and percentage of, urgent prior  
30 authorization requests that the utilization review organization  
31 approved, aggregated for all health care services and items.

32 (2) The total number of, and percentage of, urgent prior  
33 authorization requests that the utilization review organization  
34 denied, aggregated for all health care services or items.

35 (3) The total number of, and percentage of, nonurgent prior

1 authorization requests that the utilization review organization  
2 approved, aggregated for all health care services or items.

3 (4) The total number of, and percentage of, nonurgent prior  
4 authorization requests that the utilization review organization  
5 denied, aggregated for all health care services or items.

6 (5) The total number of, and percentage of, nonurgent  
7 prior authorization requests that were complex or involved  
8 unique circumstances that the utilization review organization  
9 approved, aggregated for all health care services or items.

10 (6) The average and median time that elapsed between the  
11 submission of a prior authorization request and a determination  
12 by the utilization review organization for the prior  
13 authorization request, aggregated for all health care services  
14 or items.

15 (7) The average and median time that elapsed between the  
16 submission of an urgent prior authorization request and a  
17 determination by the utilization review organization for the  
18 urgent prior authorization request, aggregated for all health  
19 care services or items.

20 (8) The average and median time that elapsed between the  
21 submission of a nonurgent prior authorization request and a  
22 determination by the utilization review organization for the  
23 urgent prior authorization request, aggregated for all health  
24 care services or items.

25 NEW SUBSECTION. 2A. a. A utilization review organization  
26 shall, at least annually, review all health care services for  
27 which the health benefit plan requires prior authorization and  
28 shall eliminate prior authorization requirements for health  
29 care services for which prior authorization requests are  
30 routinely approved with such frequency as to demonstrate that  
31 the prior authorization requirement does not promote health  
32 care quality, or reduce health care spending, to a degree  
33 sufficient to justify the health benefit plan's administrative  
34 costs to require the prior authorization.

35 b. A utilization review organization shall submit an annual

1 report containing the findings of the review conducted under  
2 paragraph "a" to the commissioner pursuant to the reporting  
3 procedures and deadlines established by the commissioner. The  
4 commission shall publish, within sixty days of receipt, the  
5 report on a publicly accessible internet site. The annual  
6 report shall include all of the following:

7 (1) The total number of prior authorizations the  
8 utilization review organization evaluated as part of the annual  
9 review.

10 (2) The number of prior authorizations the utilization  
11 review organization eliminated as a result of the annual  
12 review, and the reason for the elimination.

13 (3) A list of prior authorizations that had at least eighty  
14 percent of requests approved in the previous twelve months for  
15 a specific health care service covered by a health benefit  
16 plan, but which prior authorizations were retained due to  
17 medical or scientific evidence, as defined in section 514J.102,  
18 that justified continuing such requirement.

19 (4) The total number of prior authorization requests  
20 submitted in the previous twelve months for each eliminated  
21 prior authorization, and the total number of health care  
22 providers that submitted a request for prior authorization  
23 in the previous twelve months for each eliminated prior  
24 authorization requirement.

25 (5) For each health care service for which prior  
26 authorization was eliminated under subparagraph (2), the report  
27 shall include data regarding any increase or decrease of ten  
28 percent or greater in the average number of claims submitted  
29 per health care provider for that health care service compared  
30 to the twelve months immediately preceding the elimination of  
31 the prior authorization.

32 NEW SUBSECTION. 3A. Complaints regarding a utilization  
33 review organization's compliance with this chapter may be  
34 directed to the insurance division. The insurance division  
35 shall notify a utilization review organization of all

1 complaints regarding the utilization review organization's  
2 noncompliance with this chapter. All complaints received  
3 pursuant to this subsection shall not be considered public  
4 records for purposes of chapter 22.>

5 2. Title page, by striking lines 1 and 2 and inserting  
6 <An Act relating to prior authorization and utilization  
7 review organizations.>